

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-26

TRIPLE L GLOBAL, LLC,

COMPLAINANT,

v.

SLI, INC. d/b/a SEALINK INTERNATIONAL

RESPONDENT.

COMPLAINANT’S ANSWER TO RESPONDENT’S COUNTERCLAIM

Complainant Triple L Global LLC (“Complainant” or “TLG”) hereby answer Respondent Sealink’s Counterclaim (“Counterclaim”) and include assert affirmative defenses as follows:

1. Paragraph 59 of the Counterclaim contains no factual allegations against the Complainant and therefore requires no response.
2. Paragraph 60 of the Counterclaim contains no factual allegations against the Complainant and therefore requires no response.
3. Paragraph 61: Complainant denies knowledge or information sufficient to admit or deny.
4. Paragraph 62: Deny knowledge or information sufficient to admit or deny Respondent’s offer of “services in sea transportation.” Admit that Complainant booked a shipment with Sealink identified by Bill of Lading NAM9409473.

5. Paragraph 63: Admit that the description of the goods was designated as “Aluminum Alloys,” but cannot admit or deny the remainder of Paragraph 63 as stated.
6. Paragraph 64: Admit that CMA was the Carrier for the Shipment. Deny knowledge or information sufficient to admit or deny the remainder of Paragraph 64.
7. Paragraph 65: The allegations in paragraph 65 of the Counterclaim call for a conclusion of law requiring no response. To the extent a response is required, the Complainant denies the allegations contained in Paragraph 65 of the Counterclaim.
8. Paragraph 66: The allegations in paragraph 66 of the Counterclaim call for a conclusion of law requiring no response. To the extent a response is required, the Complainant denies the allegations contained in Paragraph 66 of the Counterclaim.
9. Paragraph 67: The allegations in paragraph 67 of the Counterclaim call for a conclusion of law requiring no response. To the extent a response is required, the Complainant admits that it received an invoice for freight charges for several of TLG shipments transported by Maersk, and denies that it has not paid for the ocean transportation as Complainant promptly emailed and advised Respondent that it deduct the freight charges from Complainant’s \$35,000 deposit held by Respondent and to refund the balance, which Respondent did not do.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE

The Counterclaim fails to allege essential elements of a claim under 46 U.S.C. § 41102(a) and 46 C.F.R. § 545.2, including the required element of that Respondent plead and show it suffered actual injury, as required by the Shipping Act, as amended.

SECOND AFFIRMATIVE DEFENSE

Failure to state a claim upon which relief may be granted.

THIRD AFFIRMATIVE DEFENSE

Respondent's Counterclaim is barred, in whole or in part, by the applicable statute of limitations and the doctrine of "unclean hands."

FOURTH AFFIRMATIVE DEFENSE

Respondent acted at all relevant times for the subject shipments, as an FMC licensed freight forwarder, and as such owed a fiduciary duty to Complainant to act in the best interest of Complainant and comply with FMC regulations governing ocean freight forwarders to not impart false information to Complainant and Complainant's customers.

FIFTH AFFIRMATIVE DEFENSE

Respondent's claims are barred, in whole or in part, by the doctrine of "Laches."

SIXTH AFFIRMATIVE DEFENSE

Any alleged damage sustained by the Respondent was proximately, directly, and solely caused by the acts of Respondent.

SEVENTH AFFIRMATIVE DEFENSE

Respondent has failed to plead with sufficient particularity the circumstances constituting Complainant's alleged "fraud" and "deception" in conformity with FRCP 9(b).

EIGHTH AFFIRMATIVE DEFENSE

With respect to the Counterclaim alleged by Respondent, Respondent failed to plead with sufficient particularity and specificity the circumstances, time, dates, identity of shipments, the ocean carrier involved, and other information constituting Complainant's alleged violation of 41012 (a) and 545.2.

NINTH AFFIRMATIVE DEFENSE

Respondent flagrantly violated FMC regulations at 46 CFR § 515.32 (c), which prohibits withholding information to Principal, and § 515.32 (d), which requires that upon request, the licensed forwarder shall provide copies of all invoices and breakdown of charges.

TENTH AFFIRMATIVE DEFENSE

Respondent lacks standing to allege a violation of §41102 (a) as an ocean freight forwarder.

ELEVENTH AFFIRMATIVE DEFENSE

Respondent's Counterclaim is barred in whole or in part by the doctrines of waiver and/or estoppel.

TWELTH AFFIRMATIVE DEFENSE

The respondent's alleged losses, damages, and/or charges and expenses were caused in whole or in part by the fault, design or neglect, dereliction or breach of fiduciary duty and of care of the Respondent, its agents, servants, and/or employees and/or those in charge for whom Respondent is responsible.

THIRTEENTH AFFIRMATIVE DEFENSE

Respondent's alleged losses, damages, and/or charges and expenses it allegedly suffered, resulted from causes within the privity and knowledge of Respondent and/or their officers, directors, managers, supervisors, superintendents, agents, and/or others whose privity and knowledge are imputable to Respondent.

FOURTEENTH AFFIRMATIVE DEFENSE

The Respondent is guilty of culpable conduct in the events giving rise to the claims asserted in the Counterclaim, and Respondent's recovery, if any, must be diminished in proportion thereto.

FIFTEENTH AFFIRMATIVE DEFENSE

Respondent's Counterclaim is barred, in whole or in part, by its own violation of the Shipping Act and/or FMC regulations.

SIXTEENTH AFFIRMATIVE DEFENSE

Without waiver of any other defenses or affirmative defenses, Respondent has failed to mitigate its damages.

RESERVATION REGARDING ANSWER AND AFFIRMATIVE DEFENSES

Complainant reserves its right, without limitation, to amend its Answer and Affirmative Defenses to Respondent's Counterclaim, to assert additional affirmative defenses and to raise and rely upon any additional affirmative defenses that it determines during this action are appropriate and applicable to the Counterclaim and underlying Complaint.

PRAYER FOR RELIEF

WHEREFORE, Complainant TLG demands judgment against Respondent (1) dismissing its Counterclaim against Complaint with prejudice, (2) awarding Complainant attorneys' fees and costs pursuant to 46 U.S.C. § 41305, and (3) awarding Complainant such other relief as the Court deems equitable and just.

Respectfully Submitted



Respectfully submitted,
Henry P. Gonzalez, LL.M.
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Attorney for Complainant Triple L Global

Dated: February 10, 2025

CERTIFICATE OF SERVICE

The undersigned certifies that on February 10, 2025, a true and correct copy of the foregoing Complainant's Answer To Respondent's Counterclaim was served via email upon Counsel for Respondent, Daena Goldsmith Ramsey, Esq., dramsey@shieldslegal.com and a courtesy copy to: judges@fmc.gov.

A handwritten signature in black ink, appearing to read "Henry P. Gonzalez", written in a cursive style.

Henry P. Gonzalez, LL.M.